

24TRCV00760 24TRCV00760

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 24TRCV00760 Hearing Date: July 16, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Thursday – July 16, 2026

Calendar No.

PROCEEDINGS

Junfeng

Han, et al. v. King-Yu Chang, et al.

24TRCV00760

Junfeng Han, et al.'s Motion to Set Aside Dismissal

TENTATIVE RULING

Junfeng Han, et al.'s Motion to Set

Aside Dismissal is granted.

Background

Plaintiffs filed the Complaint on March 4, 2024. Plaintiffs

allege the following facts. Plaintiff Junfeng Han was contracted to work on

Defendants' premise. Plaintiff alleges that he was injured when he fell from a ladder and alleges a cause of action for Premises Liability. Plaintiff Shumin Zhang alleges a cause of action for Loss of Consortium.

Motion to Set Aside Dismissal

CCP § 473(b) states, in relevant part: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. . . ."

Plaintiffs move for an order granting relief from the entry of dismissal. The motion is brought pursuant to CCP § 473 et seq. on the grounds that the dismissal was entered due to the mistake, inadvertence, surprise, and/or neglect of Plaintiff's counsel. Plaintiffs have set forth facts to support a showing that the dismissal was entered due to the mistake, inadvertence, surprise, and/or neglect of Plaintiff's counsel. Plaintiffs' counsel failed to appear at the case management conference and order to show cause due to a calendaring mistake. (Decl. Trevor J. Herrera, ¶¶ 4-13).

The motion must be granted pursuant to the mandatory provision of CCP § 473(b). The dismissal is hereby set aside.

Plaintiff is ordered to give notice of this ruling.